

HCDE Artificial Intelligence Usage Regulations and Procedures

Effective Date: TBD

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1. Purpose

This policy establishes guidelines for the responsible and ethical use of Artificial Intelligence (AI) technologies by employees of the Harris County Department of Education (HCDE). The goal is to leverage AI to enhance educational outcomes, administrative efficiency, and decision-making while safeguarding privacy, security, and equity. Employees should only use AI in a manner consistent with this policy's guidelines. Requests for exceptions should be directed to the **<title of employee who owns this policy>**.

2. Scope

This policy applies to all employees, contractors, and third-party vendors who use AI tools in any capacity, including but not limited to:

- Instructional AI tools (e.g., automated tutoring systems, adaptive learning platforms)
- Administrative AI applications (e.g., student performance analytics, AI-driven scheduling)
- AI-assisted content generation (e.g., chatbots, generative AI tools like ChatGPT)
- AI-assisted chat and search tools (e.g. search assistants such as Qualtrics Assist)
- AI in hiring, HR, and decision-making

3. Acceptable and Prohibited Uses

3.1 Acceptable Uses

- AI tools should be used to enhance, not replace, human decision-making in education and administration.
- Employees may use AI to automate routine tasks, analyze educational data, and improve instructional materials when aligned with ethical standards and educational goals.
- AI-generated content must be reviewed for accuracy, appropriateness, and compliance with school policies before being shared with students or the public.

- Employees must ensure AI use aligns with principles of fairness, transparency, and non-discrimination.

3.2 Prohibited Uses

- AI should not be used to generate student evaluations, grades, or disciplinary actions without human oversight.
- AI must not be used to produce misleading content for any purpose.
- Employees must not input confidential, personally identifiable information (PII) or protected health information (PHI) of students, parents, employees or vendors into AI tools without explicit authorization.
- AI-generated decisions related to hiring, student admissions, or disciplinary actions should not be solely automated.
- AI-generated decisions related to procurement evaluation and decisions should not be solely automated.

4. Data Privacy and Security

- AI tools must comply with FERPA (Family Educational Rights and Privacy Act) and state/local data protection laws.
- No personally identifiable student data should be shared with external AI platforms unless explicitly approved by the district's IT department.
- Employees should use only district-approved AI tools that meet security and compliance requirements.
- AI interactions involving sensitive student data must be logged and auditable to ensure accountability.
- Suspected breaches of data privacy or security must be reported to the HCDE Technology Services department, compliance offices and appropriate law enforcement offices.

5. Bias, Fairness, and Ethical Considerations

- Employees must be aware of AI biases and take steps to mitigate potential discrimination in AI-driven decisions.
- AI tools should be tested for fairness and must not reinforce systemic biases against students based on race, gender, socioeconomic status, or learning abilities.
- Transparency in AI use is required—students, parents, and employees should be informed when AI is involved in decision-making processes.

6. Employee Responsibilities and Training

- All employees using AI must undergo annual training on ethical AI use, data privacy, and security best practices.

- Employees are responsible for verifying AI-generated outputs before implementation in the educational process.
- Any AI-related incidents, misuse, or security concerns must be reported to the HCDE Technology Services department immediately.

7. Consequences for Policy Violations

Violations of the HCDE AI Use Policy will be treated like other allegations of wrongdoing at HCDE. Allegations of misconduct will be adjudicated according to established policies and procedures. Sanctions for violation of this policy may include, but are not limited to, one or more of the following:

- Temporary or permanent revocation of access to some or all Internet Resources, computing and networking resources and facilities, and/or the HCDE system;
- Disciplinary action, up to and including termination of employment, according to applicable HCDE policies and/or procedures;
- Legal action according to applicable laws and contractual agreements.

8. Additional Guidance

As of this writing, the Texas Education Agency has not issued guidance on the use of AI. In the event that guidance is issued, this policy should be reviewed in order to determine compliance and alignment.

HCDE's AI Acceptable Use Policy is informed by current guidance from the U.S. Department of Education (ED) to ensure responsible, ethical, and equitable integration of artificial intelligence tools in educational environments.

9. Policy Oversight and Enforcement

To ensure consistent and responsible use of Artificial Intelligence (AI) tools within the district, the following roles and divisions are designated to oversee, interpret, and enforce this AI Acceptable Use Policy:

Director of Information Technology

Serves as the lead official for the interpretation and application of this policy.

- Evaluates AI tool requests and provides implementation guidance.
- Coordinates with relevant departments on the safe and effective use of AI systems.
- Ensures system-wide awareness and training on the acceptable use of AI.

General Counsel

Monitors compliance with data protection requirements in relation to AI use.

- Reviews AI tools for compliance with FERPA, HIPAA, COPPA, and other applicable privacy laws.
- Provides guidance on handling confidential and sensitive information in AI applications.
- Investigates any data breach or privacy concern arising from AI tool usage.

Curriculum and Instruction Department

Ensures that AI tools used in the classroom align with pedagogical goals and educational equity.

- Reviews proposed AI-enhanced instructional materials.
- Monitors the use of AI in assessments, tutoring systems, and grading tools for fairness and educational value.
- Collaborates with educators to promote responsible AI integration in learning.

Human Resources Department

Oversees proper employee use of AI and investigates potential misuse.

- Provides training and policy onboarding for new and existing employees.
- Responds to concerns about inappropriate or unauthorized AI use by employees.
- Coordinates disciplinary actions as needed.

AI Policy Review Committee

A cross-functional group including representatives from IT, teachers, administration, and legal/compliance roles.

- Periodically review and update the AI Acceptable Use Policy.
- Evaluate new AI tools or platforms proposed for use.
- Serve as a referee panel for complex or contested issues.

10. Glossary of AI Terms

The following are some basic definitions that may be helpful in understanding the concepts covered in this Bulletin (in alphabetical order):

- **Adaptive AI:** A type of artificial intelligence that can adjust its behavior and outputs over time based on new data or changing environments without requiring explicit reprogramming. This allows the AI to learn from experience and improve its performance dynamically.
- **Algorithm:** A set of instructions or rules designed to perform a specific task or solve a problem. In AI, algorithms process data and help machines learn how to perform tasks such as recognizing patterns or making decisions.

- **Artificial Intelligence (AI):** A field of computer science focused on building systems that can perform tasks typically requiring human intelligence. These tasks include learning, reasoning, problem-solving, understanding language, and recognizing patterns.
- **Augmented Intelligence:** A design pattern for AI systems intended to enhance and assist human decision-making rather than replace it. It emphasizes the collaborative role of AI in supporting human intelligence.
- **Bias:** Systematic errors in an AI system's outputs caused by incorrect assumptions in the learning process, unbalanced data, or flawed design. Bias in AI can lead to unfair or discriminatory outcomes, especially in decision-making systems.
- **Chatbot:** A software application that simulates human conversation, often through text or voice, using natural language processing. Chatbots can provide customer service, answer questions, or help users complete tasks.
- **Confidential Data:** Information that is not intended for public disclosure due to its sensitive nature. In an educational context, this can include student records, employee personnel files, or proprietary information.
- **Generative AI:** A type of AI that can create new content such as text, images, audio, or video based on patterns learned from existing data. Examples include text-generation tools like ChatGPT or image-generating tools like DALL·E.
- **Hallucination:** The generation of false, misleading, or nonsensical information by an AI system, particularly by large language models. These outputs may appear plausible or factually correct but are not based on the model's training data or any real-world facts. Hallucinations often occur when the AI attempts to answer questions beyond its knowledge or invents details to complete a response.
- **Large Language Model (LLM):** A sophisticated AI model trained on vast amounts of text data to understand and generate human-like language. LLMs are the backbone of many AI tools used for translation, summarization, question answering, and more.
- **Machine Learning:** A subset of AI that focuses on developing systems that learn from data. Rather than being explicitly programmed to perform a task, machine learning algorithms identify patterns and make decisions based on data inputs.
- **Natural Language Processing (NLP):** A field within AI that enables computers to understand, interpret, and generate human language. NLP powers tools like spell checkers, language translation apps, and voice-activated assistants.
- **Predictive AI:** AI systems designed to forecast future events or behaviors based on historical data. Common in areas like student performance monitoring, predictive AI can alert educators to students who may need intervention.
- **Sensitive Information:** Personal or private data that must be protected to ensure individual privacy and prevent misuse. Examples include Social Security numbers, health records, or disciplinary actions. Improper handling of this information can result in legal and ethical violations.